

Amendment No. 1 to HB2393

White
Signature of Sponsor

AMEND Senate Bill No. 2310*

House Bill No. 2393

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, Part 3, is amended by adding the following new section:

(a) As used in this section:

(1) "Digital device" means electronic hardware used for instructional purposes that can access, process, store, or transmit data;

(2) "Parent" means a parent or legal guardian of a student in any of the grades kindergarten through five (K-5); and

(3) "Social media" means a form of interactive electronic communication through an internet website or application by which a user creates a service-specific profile to connect with other users for communication or content sharing.

(b) Each LEA and public charter school serving students in any of the grades kindergarten through five (K–5) shall adopt a policy governing the age-appropriate and instructional use of digital devices by students to minimize unnecessary screen time while preserving instructional effectiveness.

(c) A policy adopted pursuant to subsection (b) must:

(1) Prioritize in-person, teacher-led instruction and the use of non-electronic instructional materials as the primary mode of instruction for students in any of the grades kindergarten through five (K-5);

(2) Limit the use of digital devices issued by the LEA or public charter school for students who are in any of the grades kindergarten through five (K-5) to instructional purposes for which such use provides a clear educational benefit;

(3) Prohibit students in any of the grades kindergarten through five (K-5) from accessing social media platforms through internet services provided by the LEA or public charter school during the instructional day;

(4) Ensure that electronic assessments and instructional tools used by students in any of the grades kindergarten through five (K-5) are developmentally appropriate and aligned with state academic standards; and

(5) Provide parents with transparency regarding the types of digital devices used by students and the instructional purposes for any such use.

(d) This section does not prohibit the use of digital devices for:

(1) Targeted instructional support, intervention, or remediation;

(2) Accommodations or services required under the Individuals with Disabilities Education Act (20 U.S.C. § 1400 et seq.), Section 504 of the Rehabilitation Act (29 U.S.C. § 794), or the Americans with Disabilities Act (42 U.S.C. § 12101 et seq.);

(3) Administration of a universal screener adopted by the state board of education, a Tennessee universal screener, dyslexia screenings, state-adopted benchmark assessments, or other assessments required by state or federal law;

(4) Teacher preparation, lesson planning, or professional use;

(5) Public virtual schools;

(6) Homebound instruction established in § 49-10-1101;

(7) Remote instructional days provided pursuant to § 49-6-3004(i); or

(8) Hybrid learning days provided pursuant to § 49-6-3004(j).

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.